

Request to File an Agreement Form 26

Provincial Court Family Rules

You can complete and file most family forms online using the Family Law Act Online Forms Service.

Access the service at justice.gov.bc.ca/apply-for-family-order.

The free service includes guided pathways that ask you questions and put your answers into the required court forms. When you're finished, you can save and file your forms electronically or print them to file in person.



A PDF version of this form is available online for download at www.gov.bc.ca/court-forms.

For courthouse locations, addresses, and contact information visit:

www.gov.bc.ca/courthouselocations

Family law:

The [Provincial Court Family Rules](#) set out the steps that you must take and the forms you must complete in a family law case. These rules apply to cases in Provincial Court about matters under the [Family Law Act](#) and the [Family Maintenance Enforcement Act](#).

You can find the Rules and Acts on the BC Laws website at www.bclaws.gov.bc.ca.

Preparing a Request to File an Agreement Form 26

Complete this form if you need to file a written agreement in Provincial Court.

A written agreement that is filed in Provincial Court under the Family Law Act is enforceable under the Act as if it were an order of the Provincial Court.

How do I enforce a written agreement?

There are different enforcement options available under the Family Law Act or the Family Maintenance Enforcement Act depending on what issues your written agreement is about.

Enforcement actions under the Provincial Court Family Rules are set out in [Part – 10 Enforcement](#).

NOTE: If you need help with paying or receiving child support or spousal support under an agreement, you may want to contact the BC Family Maintenance Agency first to see if they can help. Visit their website at www.bcfma.ca or contact them by phone at 1-800-663-3455.



Need legal help?

It's important to understand the law and make sure you have the right information. If you don't, it can make solving your problem harder. Getting advice from a lawyer can help. You can find a lawyer through:

Legal Referral Service

Visit <https://bclegal.help/> or call at 604-687-3221 to consult a lawyer for up to 15 minutes for free

Legal Aid, Duty Counsel and Family Advice Lawyers

Visit <https://legalaid.bc.ca/> or call 1-866-577-2525

Legal Services and Resources

Visit the ClickLaw Legal Services page at www.clicklaw.bc.ca/services



Filling out the form and preparing to file it

Follow the instructions in the form and include all the information that is asked for.

If you complete the form by hand, be sure it's readable.

How do I prepare the form for filing?

- print or make copies of the completed form and determination: one set for you, one set for the court, and one set for each other party



Filing the form at the registry

After you've filled out the form, you must file it at the [Provincial Court Registry](#):

- where the existing Provincial Court case with the same parties is filed (you already have a court file number)
- nearest to where the child lives most of the time, if the case involves a child-related issue, or
- nearest to where you live if the case does not involve a child-related issue

File the form:

- electronically using the [FLA Online Forms Service](#)
- in person at the court registry
- by mail
- by email, as referenced in Notice to the Profession and Public [NP 28 Current Court Operations](#), or
- by fax filing using the [Fax Filing Cover Page Form 52](#)

There are no fees for filing Provincial Court family documents.

Be sure to bring all copies of the documents to the registry if you are filing in person.

The registry clerk will review your form to make sure it's complete before filing it. You'll be given a copy for your records.

Request to File an Agreement

Form 26

Provincial Court Family Rules
Rule 132

COURT STAMP

Registry location:

Court file number:

Document number:

For registry use only

This Request to File an Agreement provides information about a written agreement that a person is filing under the *Family Law Act* in the Provincial Court. A written agreement that is filed in Provincial Court under the *Family Law Act* is enforceable under the Act as if it were an order of the Provincial Court.

Part 1 | About the parties

1. My full name is:
Full name of party
- My date of birth is:
(dd/mmm/yyyy)
2. The full name of **other party to this agreement** is:
Their **date of birth** (dd/mmm/yyyy) is:
- ☐ There is an additional party.
The **additional party's** full name is:
Their **date of birth** (dd/mmm/yyyy) is:

Part 2 | Request to file agreement

3. I request to file a copy of the written agreement dated, between the above parties, in the Provincial Court. (dd/mmm/yyyy)
4. I am filing the written agreement **under the following provision(s)** of the *Family Law Act*.
Select all options that apply
- ☐ section 15 *[when parenting coordinators may assist]*
- ☐ section 44 (3) *[agreements respecting parenting arrangements]*
- ☐ section 58 (3) *[agreements respecting contact]*
- ☐ section 92 (e), (f) and (g) *[agreements respecting property division]*
- ☐ section 148 (2) *[agreements respecting child support]*
- ☐ section 163 (3) *[agreements respecting spousal support]*

Part 3 | Address for service

5. My **address for service** of court documents and contact information is:
You must provide an address for service and contact number, but it does not have to be your own if you don't want to

Address:

City: Province: Postal Code:

Email: Telephone:

Lawyer's name and firm name (if applicable):



You must file a copy of the written agreement along with this form.



To determine what section applies, look at the terms in written agreement to see what the agreement is about. It may be filed under more than one section of the *Family Law Act* if your agreement is about different issues.

Section 92 applies to agreements respecting companion animals.



This information will be available to the other party and the court.